

23STCV31247 23STCV31247

County: los-angeles

Division: Civil Law and Motion

Department: 515

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Case Number: 23STCV31247 Hearing Date: August 4, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Motion for Summary Judgment or, in the Alternative, Summary Adjudication

The hearing on the Motion for Summary

Judgment or, in the Alternative, Summary Adjudication, is continued to permit supplemental briefing on the timeliness of the second, third, fourth, fifth, and sixth causes of action.

BACKGROUND

Plaintiff Joseph Palladino (Plaintiff) filed this action against RTX Corporation (RTX), Raytheon Company (Raytheon), and Pablo Gibu (Gibu) (collectively, Defendants), alleging that Defendants discriminated against him because of his age and a shoulder condition, harassed him, and retaliated against him during his final years as an opto-mechanical technician at Raytheon's El Segundo facility.

The causes of action are: (1) Age Discrimination; (2) Age Harassment; (3) Disability Discrimination; (4) Disability Harassment; (5) Failure to Provide Reasonable Accommodation; (6) Failure to Engage in the Interactive Process; (7) Failure to Prevent Discrimination, Harassment, and Retaliation; (8) Retaliation in Violation of the Fair Employment and Housing Act; (9) Whistleblower Retaliation; (10) Retaliation for Reporting Unsafe Conditions; (11) Wrongful Termination in Violation of Public Policy; and (12) Intentional Infliction of Emotional Distress. The Complaint also prays for punitive damages.

Defendants filed a Motion for Summary

Judgment or, in the Alternative, Summary Adjudication. Plaintiff filed an Opposition.

LEGAL STANDARD

A defendant moving for summary judgment or summary adjudication bears the burden of persuasion that one or more elements of the cause of action cannot be established, or that a complete defense to it exists. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The moving defendant bears an initial burden of production to make a prima facie showing that no triable issue of material fact exists, and once the defendant carries that burden, the burden shifts to the plaintiff to make a prima facie showing that a triable issue exists. (*Id.* at pp. 850-851.)

The Court considers all of the evidence and all reasonable inferences from it in the light most favorable to the opposing party, and may not grant the motion on an inference contradicted by other inferences or evidence that raise a triable issue of material fact. (*Id.* at p. 843; Code Civ. Proc., § 437c, subd.

(c).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

ANALYSIS

I. Grounds Raised

Defendants argue that Plaintiff's age harassment and disability-related claims are time-barred. A complaint alleging an unlawful practice under the Fair Employment and Housing Act "shall not be filed after the expiration of three years from the date upon which the unlawful practice or refusal to cooperate occurred." (Gov. Code, § 12960, subd. (e)(5).) Plaintiff filed his charge with the Civil Rights Department on December 12, 2023, which places the cutoff at December 12, 2020. Plaintiff does not dispute that date, and he does not dispute that he submitted no further medical records and requested no further accommodation after he returned to full duty on June 23, 2020.

Limitations is not among the twenty-three issues stated in the notice of motion, and no issue in the separate statement identifies it as a ground for adjudicating a cause of action. (Cal. Rules of

Court, rule 3.1350(b).) Defendants raise it in three other places. A footnote in the moving memorandum states that the conduct on which the second cause of action rests, which Plaintiff traces to 2018, is time-barred to the extent it predates December 12, 2020. (Mot. at p. 10, fn. 13.) The reply states that the third, fourth, fifth, and sixth causes of action are barred because the disability-related conduct occurred on or before June 23, 2020. (Reply at p. 8:17-18.) Between the two, Defendants assert the statute of limitations as a ground of objection to nearly all of the evidence Plaintiff offers, including McAlpine's account of Gibu's statement about the lab's older technicians and of the relocation of Plaintiff's work station, Garcia's account of the same statement, and the Littleton Declaration's account of the overtime records, the October 2021 human resources investigation, and the 2022 grievance proceedings. (Defs.' Objs. to McAlpine Decl., objs. 2-12; Defs.' Objs. to Garcia Decl., objs. 1, 2, 4; Defs.' Objs. to Littleton Decl., objs. 2-4, 16-18, 33, 34.)

II. Opportunity to Respond

Where the court identifies a ground of law that is dispositive when applied to an undisputed material fact appearing in the parties' separate statements, the court may in its discretion reach that ground even though the moving party did not explicitly tender it. When it does so, due process requires that the party opposing the motion "must be provided an opportunity to respond to the ground of law identified by the court and must be given a chance to show there is a triable issue of fact material to said ground of law." (*Juge v. County of Sacramento* (1993) 12 Cal. App.4th 59, 70.)

A reply "shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposition." (Code Civ. Proc., § 437c, subd. (b)(4).) Defendants shall therefore argue the limitations period on the evidence already before the Court. Plaintiff, as the party opposing the motion, may submit evidence directed to the timeliness of the second, third, fourth, fifth, and sixth causes of action.

Deciding the period now would resolve five causes of action against a party who has never briefed the answer. The Court therefore continues the hearing and orders supplemental briefing.

Plaintiff shall file and serve a

supplemental opposition, not to exceed ten pages, together with any evidence and any separate statement of additional material facts directed to the timeliness of those causes of action, not less than twenty days before the continued hearing date. Defendants shall file and serve a supplemental reply, not to exceed five pages, not less than eleven days before that date. The supplemental reply shall not include any new evidentiary matter, additional material facts, or separate statement.

CONCLUSION

The hearing on the Motion for Summary

Judgment is continued to permit supplemental briefing on the timeliness of the second, third, fourth, fifth, and sixth causes of action.